

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 807

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO MEDICAID; AMENDING CHAPTER 22, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-2208, IDAHO CODE, TO PROVIDE LEGISLATIVE APPROVAL FOR CERTAIN STATE PLAN AMENDMENTS AND WAIVERS AND TO ESTABLISH PROVISIONS REGARDING FAMILY PERSONAL CARE SERVICES; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 22, Title 56, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 56-2208, Idaho Code, and to read as follows:

56-2208. LEGISLATIVE APPROVAL -- FAMILY PERSONAL CARE SERVICES. (1) The department of health and welfare is authorized to and shall submit to the centers for medicare and medicaid services all state plan and waiver authorities required to allow for legally responsible individuals to provide personal care services.

(2) Personal care services provided by a legally responsible individual pursuant to this section shall:

(a) Be limited to twenty-five (25) hours per week at the assessed level of care as determined by the department of health and welfare; and

(b) Be subject to oversight as deemed necessary by the department of health and welfare.

(3) Nothing in this section shall be construed to prohibit an individual who requires more than twenty-five (25) hours per week of personal care services from receiving such additional care from a non-legally responsible individual in accordance with applicable law.

(4) The number of legally responsible individuals authorized to provide personal care services at one time pursuant to this section shall not exceed one thousand (1,000).

(5) The department of health and welfare may promulgate rules, subject to legislative approval, to establish procedures regarding the creation and management of a wait list and otherwise carry out the provisions of this section.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after its passage and approval.